

25STCV33663 25STCV33663

County: los-angeles

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Case Number: 25STCV33663 Hearing Date: August 10, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: May

10, 2026

CASE NUMBER: 25STCV33663

CASE NAME: Christian Cisneros, et al. v. General

Motors, LLC

MOVING PARTY: Defendant General Motors, LLC

OPPOSING PARTY: Plaintiffs Christian Cisneros and

Diane Mouw

PROCEEDING: MOTION TO STRIKE

RULING SUMMARY: Defendant GM's motion to strike is denied. GM shall file an Answer within 10 days. Court continues the Case Management

Conference, and sets an Order to Show Cause re Answer for _____, 2026,

at 8:30AM, in Dept. 413.

Background

On November 17, 2025,

Christian Cisneros and Diane Mouw ("Plaintiffs") filed this lemon law action

against General Motors, LLC ("Defendant" and/or "GM") and Does 1 to 10.

The Complaint alleges five causes of action for (1) violation of Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.2(b); (3) violation of Civ. Code § 1793.2(a)(3); (4) Breach of the Implied Warranty of Merchantability (Civ. Code, §§ 1791.1, 1794, 1795.5); and (5) Fraudulent Inducement -Concealment.

Defendant GM moves to strike the Complaint. Plaintiffs oppose the motion.

LEGAL STANDARDS

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435(b)(1); CRC, rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.)

I. Discussion

A. Heading

To state a claim for punitive damages under Civil Code section 3294, a plaintiff must allege specific facts showing that the defendant has been guilty of malice, oppression or fraud. (*Smith v. Superior Court* (1992) 10 Cal. App. 4th 1033, 1042.) The basis for punitive damages must be pled with specificity; conclusory allegations devoid of any factual assertions are insufficient. (*Ibid.*)

“Malice” is defined in Civil Code section 3294

(c)(1) as “conduct which is intended by the defendant to cause injury” or “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” “Oppression” is defined as “despicable conduct subjecting a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code §, 3294(c)(2).) The term “despicable” has been defined in the case law as actions that are “base,” “vile,” or “contemptible.” (Shade Foods, Inc. v. Innovative Products Sales & Marketing, Inc. (2000) 78 Cal.App.4th 847, 891.) Fraud means “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294(c)(3).)

When the defendant is a corporation, “the oppression, fraud, or malice must be perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent of the corporation.” (Wilson v. Southern California Edison Company (2015) 234 Cal.App.4th 123, 164; see Civ. Code, § 3294(b).)

Defendant GM moves to strike the following from the Complaint:

a)

Paragraphs

29, 30, and 31 of the Complaint in the First Cause of Action on the ground that Plaintiffs improperly plead a request for civil penalties.

b)

Paragraph

36 in the Second Cause of Action on the ground that Plaintiffs improperly plead a request for civil penalties.

c)

Paragraph

39 in the Third cause of Action on the ground that Plaintiffs improperly plead a request for civil penalties.

d)

Subdivision

(f) of the Prayer on the ground that Plaintiffs improperly plead a request for civil penalties.

GM contends that the first three causes of action for breach of express warranty are governed by newly enacted Civil Code section 871.24 and pursuant to that provision, Plaintiffs were required to comply with the pre-suit notice and vehicle retention requirements before seeking civil penalties. GM asserts that, because the Complaint fails to state that Plaintiffs complied with the 30-day written pre-suit notice and vehicle retention, the Complaint's request for civil penalties should be stricken.

Civil Code section 871.24(a) provides that

"[a]t least 30 days prior to the commencement of an action seeking civil penalties under" Civil Code section 1794(c), Plaintiffs must: "(1) Notify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ('VIN') of the motor vehicle, and a brief summary of the repair history and problems with the motor vehicle" as well as "(2) Demand that the manufacturer repurchase or replace the motor vehicle." However, "[m]inor deviations in the notice submitted pursuant to subdivision (a) shall not disqualify consumers from seeking civil penalties." (Civ. Code, § 871.24(b).) When the notice is sent, "the consumer shall have possession of the motor vehicle." (Id. 871.24(c).) The notice shall be in writing and sent by email or mail, return receipt requested, to the manufacturer's address provided in the owner's manual or warranty booklet." (Id. § 871.24(d).)

Plaintiffs assert that paragraph 24 of the Complaint sufficiently alleges compliance with section 871.24:

Plaintiffs

discovered Defendants' wrongful conduct alleged herein September 24, 2025 when Plaintiffs requested a buyback and/or restitution of the Subject Vehicle from GM, as the Vehicle continued to exhibit symptoms of defects following GM's unsuccessful attempts to repair them. However, GM failed to provide restitution pursuant to the Song-Beverly Consumer Warranty Act.

As the Complaint was filed on November 17, 2025, this request for buyback/restitution was provided more than 30 days before the action was filed. Moreover, while the Complaint does not expressly state that Plaintiffs maintained

possession of the Subject Vehicle, possession is implicit in a buyback request because Plaintiffs cannot request nor obtain buyback on a vehicle they do not possess. Therefore, Plaintiffs maintain that at the pleading stage, the allegations in Paragraph 24 of the Complaint are sufficient.

As Civil Code section 871.24(b) contemplates “[m]inor deviations in the notice submitted” and reading the allegation in the Complaint in full and in context, the Court finds paragraph 24 is sufficient to allege compliance with Section 871.24(b). Discovery will give GM the opportunity to show that it never received sufficient notice for buyback or repurchase or that the notice contained errors that were not minor and were insufficient to provide notice under 871.24(b).

The motion to strike is denied.

Conclusion

Defendant GM's motion to strike is denied. GM shall file an Answer within 10 days. Court continues the Case Management Conference, and sets an Order to Show Cause re Answer for _____, 2026, at 8:30AM, in Dept. 413.

Date: _____

William
E. Weinberger

Judge,
Los Angeles Superior Court